

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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ROXANNE SMITH,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER CARLOS CRUZ
Shield No# 26483, POLICE OFFICER JEFFRY
VASQUEZ, and POLICE OFFICER JOHN DOES**

Index No.

Purchased July 19, 2019
Plaintiff designates BRONX
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BRONX, New York
July 19, 2019


R. JENNY MARASHI, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
BRONX, New York 10451
(917) 703-1742

Defendant's Address:

CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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ROXANNE SMITH,

Plaintiff,**Index No.****Verified Complaint****- against -**

**THE CITY OF NEW YORK,
POLICE OFFICER CARLOS CRUZ
Shield No# 26483, POLICE OFFICER JEFFRY
VASQUEZ, and POLICE OFFICER JOHN DOES**

Defendants.

-----X

Plaintiff ROXANNE SMITH, by her attorney P. JENNY MARASHI, ESQ.,
complaining of the Defendants, respectfully shows to this Court and alleges the following
upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ROXANNE SMITH ("MS. SMITH") was a resident of BRONX County, City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, Defendants Police Officer CARLOS CRUZ, ("CRUZ") Shield Number 26483, JEFFRY VASQUEZ ("VASQUEZ") and PO

Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to April 23, 2018, Police Officers CRUZ and VASQUEZ, and JOHN DOE were employed by Defendants CITY and NYPD and were assigned in the Borough and County of BRONX, City and State of New York.

5. The actions of CRUZ and VASQUEZ, and JOHN DOE described herein were performed within the scope of their employment and authority and while they acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

6. On or about April 23, 2018 MS. SMITH was inside her home, cleaning her oven, when the upstairs tenants called 911 to report there was smoke coming from MS. SMITH's apartment. There was no fire, only fumes from the oven cleaning.

7. Firefighters came to MS. SMITH's home some short time later.

8. At that point firefighters arrived, there was absolutely no smoke, and there had never been any fire. MS. SMITH refused to allow the firefighters or police to come inside.

9. Police Officers CRUZ and VASQUEZ, and JOHN DOE, acting as an agent, servant and employee of the CITY, forcibly moved MS. SMITH away from the door to permit firefighters to enter the home.

10. After firefighters had finished examining the stove, and were done with their inspection of the home, DEFENDANT CRUZ and VASQUEZ an/or JOHN DOE, then for no good reason, and contrary to any law or justification, threw MS. SMITH against the ground, slamming her onto the floor.

11. On or about April 23, 2018, Police Officers CRUZ and VASQUEZ, and/or JOHN DOE, threw Ms. Smith to the ground with such force as to cause her great injury to, including but, not limited to her arm, knees, and back.

12. Despite the attack and the obvious injuries associated therewith, and in an effort to coverup their misconduct, the individual defendants, and each of them, arrested MS. SMITH. Despite the attack, and a realistic opportunity to intervene therewith, neither of the individual defendants took any action to prevent, end or report the misconduct. In fact, the individual defendants, and each of them, acted to coverup their misconduct by, inter alia, failing to report their unlawful use of force.

13. At all times during the events described above, Defendants were engaged in a joint venture and formed an agreement to violate Plaintiff's rights. The individual defendant officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiff.

14. The individual defendants acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being.

15. To cover up for their use of force, and retaliate against MS. SMITH, Defendants CITY and NYPD, without just cause or provocation, abused process and intentionally and falsely accused MS. SMITH of having committed the crime of Resisting Arrest (P.L 205.30) and Obstructing Governmental Administration (P.L.

195.05), while she was inside her home at 241st Street in the Bronx, in Bronx County, under Docket Number BX014133.

16. On or about April 23, 2018, Defendants, their agents, servants and/or employees, intentionally placed MS. SMITH under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

17. On or about APRIL 24, 2018 the District Attorney of BRONX County prosecuted MS. SMITH for the false charges that had been made against her by Defendants; the matter was docketed in court and was terminated in favor of MS. SMITH on 4/12/2019, under CPL 170.55.

18. After her arrest on April 23, 2018 MS. SMITH was detained by Defendants until she was released at arraignments on or about April 24, 2018.

19. As a result of the treatment of MS. SMITH by the Defendants, MS. SMITH was denied liberty by being falsely arrested and imprisoned for approximately twenty-four hours.

20. As a result of the assault and battery, and excessive force used against MS. SMITH by Defendants, in their slamming her onto the floor, unlawfully, and for no reason, MS. SMITH suffered two tears in her meniscus in both of her knees, injury to her wrist, as well as other physical injuries.

21. While in custody of the NYPD, MS. SMITH was taken to the Montefiore-Wakefield Emergency Department to get treatment for some of her injuries.

22. MS. SMITH has been receiving follow up care by several doctors, for her injuries, including, the injuries to her knees- where she has received two surgeries as

a result of Defendants conduct.

23. MS. SMITH suffered emotional injuries due to the conduct of the Defendants.

24. As a result of being falsely arrested and detained for twenty-four hours, MS. SMITH suffered humiliation, fear for her safety and other emotional distress.

PROCEDURAL POSTURE

25. On June 6, 2018 Plaintiff timely served a Notice of Claim (claim number 2018PI017137) in writing sworn to on her behalf upon Defendant CITY, which Notice of Claim advised the Defendant CITY of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

26. Plaintiff also timely filed, on May 24, 2019 a Notice of Claim for malicious prosecution (under receipt number 201900055665), within 90 days of the date of the dismissal of all criminal charges against her.

27. A 50-h hearing was held on May 31, 2019.

28. More than thirty days have elapsed since service of said notice, and hearing, and Defendant CITY has failed to pay or adjust the claim.

29. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

30. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

31. Above paragraphs are incorporated by reference as fully set forth herein.

32. On April 23, 2018 at approximately 12:30 a.m., while inside her home, Defendant PO CRUZ and/or VASQUEZ and/or JOHN DOE wrongfully touched, grabbed, handcuffed, slammed, and seized MS. SMITH, in an excessive manner about her person, causing MS. SMITH physical pain, injury, and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MS. SMITH was aware of her arrest and confinement as described in above paragraphs, and she did not consent to that arrest or confinement, nor was it privileged by law.

33. As a result of being falsely arrested by the Defendants, MS. SMITH sustained multiple injuries. She was denied liberty and the ability to enjoy life for approximately twenty-four hours. She also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

34. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

35. The Defendants, their agents, servants and employees, arrested and confined MS. SMITH, as described in paragraphs above, and intended to confine MS. SMITH. MS. SMITH was conscious of her confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

36. As a result of being falsely imprisoned by the Defendants, MS. SMITH sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

37. Paragraphs above are incorporated by reference as though fully set forth herein.

38. In arresting MS. SMITH, PO CRUZ, VASQUEZ and JOHN DOE, acting in their capacity as an agent, servant and employee of Defendants CITY and NYPD, was motivated by an ulterior purpose to do harm, to cover up for their use of force, without justification or economic or social excuse.

39. In arresting MS. SMITH, PO CRUZ, VASQUEZ and JOHN DOE, acting in their capacity as the agent, servant and employee of Defendants CITY and NYPD, sought either a detriment to MS. SMITH or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

40. As a result of the abuse of process by the Defendants, MS. SMITH sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety.

FOURTH CAUSE OF ACTION ASSAULT AND BATTERY

41. Paragraphs above are incorporated by reference as though fully set forth herein.

42. On APRIL 23, 2018, at approximately 12:40 am in BRONX County, Defendant PO CRUZ, VASQUEZ, and JOHN DOE along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed, threw to the ground, slammed, and seized MS. SMITH, in an excessive manner about her person, causing MS. SMITH physical pain and mental suffering.

43. That on or about April 23, 2108, and while in the custody of the defendants in the County of NEW YORK, City of New York, the Plaintiff MS. SMITH was intentionally touched, grabbed, pushed, shoved, slammed, assaulted, violated, humiliated and handcuffed by PO CRUZ and VASQUEZ and JOHN DOE, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

44. That on or about April 23, 2018, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MS. SMITH, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MS. SMITH and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MS. SMITH and caused such battery in and about her chest, arm, knee, body and limbs. At no time did MS. SMITH consent to the aforesaid assault and battery.

45. While not conceding that said arrest was lawful or made upon probable

cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving, slamming and grabbing of MS. SMITH, was an assault and battery beyond that which was necessary to make the arrest.

46. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular CRUZ, VASQUEZ and DOE, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MS. SMITH suffered bodily injury in and about her body and limbs and suffered conscious pain and suffering, and that she was otherwise damaged.

FIFTH CAUSE OF ACTION- FEDERAL

47. Paragraphs above are incorporated by reference as though fully set forth herein.

48. Defendants CRUZ, VASQUEZ, and JOHN DOE was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

49. At all times mentioned herein, CRUZ, VASQUEZ, and JOHN DOE were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

50. Plaintiff is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to 42 United States Code, section 1983 and 42

United States Code, section 1988.

51. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

52. On or about July 28, 2014 the Defendants, armed police, while effectuating the seizure of the Plaintiff, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause. Plaintiff had excessive force used on her when she was slammed to the ground by Defendants.

53. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault and excessive force to her person;
- b. Freedom from battery and excessive force to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force before the arrest process.

g. Freedom from malicious abuse of process.

54. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth amendments of the United State Constitution.

55. The direct and proximate result of the Defendants' acts are that Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

SIXTH CAUSE OF ACTION: MALICIOUS PROSECUTION

56. Paragraphs above are incorporated by reference as though fully set forth herein.

57. On or about April 12, 2019, after about 10 court appearances, Plaintiff's case was dismissed, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent woman, without any probable cause whatsoever, by filing or attempting to cause a criminal complaint to be filed in the Criminal Court of the City of New York, BRONX County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

58. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff.

59. The attempt to commence criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

60. As a result of being maliciously prosecuted by the Defendants, MS. SMITH was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

SEVENTH CAUSE OF ACTION: NEGLIGENCE

61. Paragraphs above are incorporated by reference as though fully set forth herein.

62. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

63. As a result of the negligence of the Defendants, MS. SMITH sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety, personal injury to her body, especially her knees and wrists and arm.

EIGHTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

64. Paragraphs above are incorporated by reference as though fully set forth herein.

65. Defendants CITY and NYPD, through its agents, servants and employees,

had the responsibility for supervising, disciplining, evaluating and training CRUZ, VASQUEZ, and JOHN DOE, as well as all of the other NYPD officers involved in this matter.

66. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search, excessive force, and seizure.

67. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause, and not to use force against individuals for no reason.

68. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

69. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including CRUZ, VASQUEZ, and JOHN DOE.

70. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including CRUZ, VASQUEZ, and JOHN DOE.

71. As a result of the negligence of Defendants CITY and NYPD and CRUZ, VASQUEZ, and JOHN DOE, MS. SMITH sustained multiple physical injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and

intimidation for her safety.

NINTH CAUSE OF ACTION: NEGLIGENT HIRING

72. Paragraphs above are incorporated by reference as though fully set forth herein.

73. Defendants CITY and NYPD had the responsibility for hiring CRUZ, VASQUEZ, and JOHN DOE.

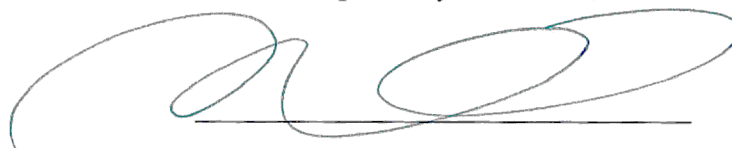
74. Defendants CITY and NYPD were negligent in hiring CRUZ, VASQUEZ, and JOHN DOE.

75. As a result of the negligence of the Defendants, MS. SMITH sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: BRONX, New York
July 19, 2019

Respectfully Submitted,

A handwritten signature in blue ink, consisting of a series of loops and a horizontal line at the bottom.

P. JENNY MARASHI, ESQ.

Attorney for Plaintiff

930 Grand Concourse, Suite 1E

BRONX, NY 10451

917-703-1742

VERIFICATION

POUPA J. MARASHI, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR:

I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof based upon a review of the file maintained in my office; that the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

I execute this Verification since I maintain my office in BRONX County and ROXANNE SMITH, is currently residing inside BRONX County.

Dated: July 19, 2019



P. JENNY MARASHI, ESQ.

CERTIFICATION

I, P. JENNY MARASHI, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



P. JENNY MARASHI, ESQ.